

Employee Rights Under the Kenya Employment Act, 2007

Know your rights. Protect your future.

Prepared By	Jurisdiction	Legal Reference	Review Date
Milkah Muchunu	Kenya	Employment Act, Cap 226	Annually

DISCLAIMER: This document is a simplified reference guide for educational and HR purposes only. It does not constitute legal advice. For specific legal matters, always consult a qualified legal professional or refer directly to the Kenya Employment Act, 2007 (Cap 226).

1. OVERVIEW & BACKGROUND

The Kenya Employment Act, 2007 (Cap 226) came into force on 2nd June 2008 and replaced the former Employment Act (Cap 226) and the Regulation of Wages and Conditions of Employment Act. It is the primary legislation governing employment relationships in Kenya and was enacted to align Kenyan labour law with international labour standards as set by the International Labour Organization (ILO).

The Act applies to all employees and employers in Kenya, with the exception of members of the Kenya Defence Forces and the National Police Service, who are governed by separate legislation.

The Act is administered by the Cabinet Secretary for Labour and Social Protection and enforced through the Directorate of Employment and Labour Relations Courts across the country.

◆ Key Objectives of the Act

- Promote and protect the rights of employees in the workplace
- Define the minimum standards of employment in Kenya
- Prohibit discrimination and forced labour
- Regulate termination of employment and redundancy
- Align Kenya's labour laws with international standards
- Provide mechanisms for resolving employment disputes

2. WHO IS PROTECTED UNDER THE ACT?

The Act defines an 'employee' as any person employed for wages or a salary and includes persons employed in a managerial capacity. The following categories of workers are protected:

Category	Coverage
Permanent Employees	Full protection under all provisions of the Act
Contract Employees	Protected for the duration of their contract. Fixed-term contracts must be in writing.
Part-time Employees	Entitled to pro-rated benefits based on hours worked
Casual Workers	Workers engaged on a day-to-day basis. If employed for 3+ months continuously, entitled to a formal contract.
Apprentices & Interns	Protected against exploitation. Must receive fair compensation and safe working conditions.
Domestic Workers	Fully protected under the Act including leave, wages, and termination rights.

IMPORTANT: If you have been working continuously for the same employer for more than 3 months, you are entitled to a written contract of employment regardless of what your employer says.

3. RIGHT TO A CONTRACT OF EMPLOYMENT

A contract of employment is the foundation of the employment relationship. The Act provides clear requirements for employment contracts to protect both parties.

◆ 3.1 Written Contract Requirements

Every employee engaged for a period of 3 months or more must receive a written contract within 2 months of commencement of employment. The contract must include:

- Full name and address of both the employer and the employee
- Date of commencement of employment
- Job title and a description of the work to be performed
- Place of work and whether the employee may be required to work elsewhere
- Hours of work — normal working hours and any overtime arrangements
- Wages or salary — amount, method, and frequency of payment
- Leave entitlements — annual, sick, maternity, and paternity leave
- Notice period required for termination by either party
- Any probationary period and its conditions
- Pension or provident fund arrangements where applicable

◆ 3.2 Employee Rights Regarding the Contract

- You are entitled to receive a signed copy of your contract
- The contract must be explained to you in a language you understand
- You cannot be forced to sign a contract under duress
- Any changes to your contract must be agreed upon in writing
- An employer cannot unilaterally change the terms of your contract

IMPORTANT: A verbal contract is still legally binding in Kenya, but a written contract provides much stronger protection. Always insist on a written contract.

4. RIGHT TO FAIR WAGES & REMUNERATION

The Act provides comprehensive protections around wages to ensure all employees are fairly compensated for their work.

◆ 4.1 Minimum Wage

The Government of Kenya, through the Regulation of Wages (General) Order, sets minimum wages for various categories of workers. These are reviewed periodically. Key provisions include:

- No employer may pay an employee below the gazetted minimum wage for their category
- Minimum wages vary by sector, location (Nairobi, municipalities, other areas), and skill level
- An employer who pays below minimum wage commits a criminal offence
- Employees can report underpayment to the nearest Labour Office at no cost

◆ 4.2 Equal Pay

The Act expressly prohibits wage discrimination. Specifically:

- Men and women performing work of equal value are entitled to equal pay
- An employer cannot pay a female employee less than a male employee doing the same job
- Pay discrimination based on race, ethnicity, or any other protected characteristic is prohibited
- Employees have the right to know their pay grade and salary band

◆ 4.3 Overtime

Day/Period	Overtime Rate	Conditions
Monday to Friday	1.5x normal hourly rate	For hours worked beyond normal working hours
Saturday	1.5x normal hourly rate	If Saturday is not a normal working day
Sunday	2x normal hourly rate	Applies regardless of contract terms

Public Holidays	2x normal hourly rate	Plus compensatory day off or additional pay
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◆ 4.4 Payslip & Deductions

- Every employee is entitled to a written payslip for every pay period
- The payslip must show: gross pay, all deductions, and net pay
- Statutory deductions include: PAYE (income tax), NSSF, NHIF, and Housing Levy
- No other deductions may be made without the employee's written consent
- An employer cannot withhold wages as a form of punishment or pressure
- Wages must be paid at the agreed time — delayed payment is a breach of contract

IMPORTANT: If your employer has not paid you on time, you have the right to report this to a Labour Officer. Withholding wages is illegal under the Act.

5. RIGHT TO LEAVE ENTITLEMENTS

The Act guarantees various categories of leave to all qualifying employees. These are minimum entitlements and employers may offer more, but never less.

◆ 5.1 Annual Leave

Provision	Details
Entitlement	21 working days of paid annual leave per year
Qualifying Period	After 12 months of continuous service with the same employer
Timing	Leave must be taken within 12 months of being earned, unless otherwise agreed in writing
Pay During Leave	Employee must receive full pay during annual leave
Cash in Lieu	Annual leave cannot be replaced by cash payment except upon termination of employment
Carry Forward	Unused leave may be carried forward by written agreement between employer and employee

◆ 5.2 Sick Leave

Provision	Details
Full Pay Sick Leave	7 working days at full pay per year
Half Pay Sick Leave	7 working days at half pay per year (after full pay days are exhausted)

Medical Certificate	A medical certificate from a recognized medical practitioner is required for sick leave
Qualifying Period	After 2 months of continuous employment
Dismissal	An employee cannot be dismissed solely on grounds of illness during the sick leave period

◆ 5.3 Maternity Leave

- Female employees are entitled to 3 months (90 days) maternity leave on full pay
- Maternity leave can commence up to 7 weeks before the expected date of delivery
- The employee retains all employment benefits during maternity leave
- An employee cannot be dismissed, demoted, or have benefits reduced due to pregnancy or maternity leave
- After maternity leave, the employee is entitled to return to the same or equivalent position
- Maternity leave does not affect the employee's annual leave entitlement
- An employee is entitled to maternity leave regardless of length of service

◆ 5.4 Paternity Leave

- Male employees are entitled to 2 weeks (14 days) paternity leave on full pay
- Leave must be taken within a reasonable time of the birth of the child
- The employee must notify the employer in advance where reasonably practicable
- Paternity leave does not affect other leave entitlements

◆ 5.5 Public Holidays

- All employees are entitled to paid leave on gazetted public holidays in Kenya
- If required to work on a public holiday, the employee must be paid double the normal rate
- Alternatively, the employee may be given a compensatory day off in lieu
- Current gazetted public holidays include: New Year's Day, Good Friday, Easter Monday, Labour Day, Madaraka Day, Huduma Day, Mashujaa Day, Jamhuri Day, Christmas Day, and Boxing Day

IMPORTANT: Your employer cannot force you to forfeit your leave entitlements. If your employer refuses to grant you leave, report the matter to the nearest Labour Office.

6. RIGHT TO SAFE & HEALTHY WORKING CONDITIONS

Under the Act and the Occupational Safety and Health Act, 2007, every employee has the right to work in a safe and healthy environment. This is a non-negotiable right that cannot be waived by contract.

◆ 6.1 Employer Obligations on Safety

- Maintain a workplace that is safe and without risk to the health of employees
- Provide and maintain safe machinery, equipment, and systems of work
- Provide personal protective equipment (PPE) at no cost to the employee
- Provide adequate training and supervision on health and safety
- Report all workplace accidents and occupational diseases to the relevant authority
- Conduct regular risk assessments of the workplace

◆ 6.2 Employee Rights on Safety

- The right to refuse work that poses an imminent danger to your health or safety
- The right to report unsafe working conditions without fear of retaliation
- The right to access information about hazards in the workplace
- The right to participate in workplace safety committees
- The right to seek medical attention at the employer's expense for work-related injuries

IMPORTANT: If you are injured at work, your employer is required to provide first aid and cover the cost of medical treatment. You may also be entitled to compensation under the Work Injury Benefits Act (WIBA).

7. PROTECTION FROM DISCRIMINATION & HARASSMENT

The Act strictly prohibits all forms of discrimination and harassment in the workplace. Every employee is entitled to be treated with dignity and respect.

◆ 7.1 Prohibited Grounds of Discrimination

Protected Characteristic	Where Protection Applies
• Race, colour, or ethnic origin • Sex or gender identity • Pregnancy or maternity status • Marital status • Religion or belief • Disability • HIV/AIDS status • Political opinion or affiliation • National or social origin	• Recruitment and selection • Pay and remuneration • Training and development • Promotion and career progression • Terms and conditions of employment • Disciplinary procedures • Termination of employment

◆ 7.2 Sexual Harassment

The Act expressly prohibits sexual harassment in the workplace. Sexual harassment includes:

- Unwelcome sexual advances, requests for sexual favours, or other verbal or physical conduct of a sexual nature
- Making submission to such conduct a condition of employment or advancement
- Creating a hostile, intimidating, or offensive work environment through such conduct

Employees who experience sexual harassment have the right to:

- Report the matter to their employer, HR department, or Labour Officer
- File a complaint with the Employment and Labour Relations Court
- Receive protection from retaliation for reporting harassment

IMPORTANT: An employer is legally required to have a sexual harassment policy in the workplace. If your employer does not have one, this is a violation of the Act.

8. PROHIBITION OF FORCED LABOUR & CHILD LABOUR

◆ 8.1 Forced Labour

The Act prohibits all forms of forced or compulsory labour. Specifically:

- No employee may be forced to work against their will under threat of penalty
- Bonded labour — where an employee is forced to work to pay off a debt — is illegal
- An employer cannot confiscate an employee's identity documents or travel documents
- Trafficking of persons for labour purposes is a criminal offence in Kenya

◆ 8.2 Child Labour

- The minimum age of employment in Kenya is 16 years
- Children between 13-16 years may only perform light work that does not affect their health, development, or schooling
- No person under 18 years may be employed in hazardous work or conditions
- Night work is prohibited for persons under 18 years
- Employment of children in contravention of the Act is a criminal offence

IMPORTANT: If you witness child labour or forced labour in your workplace, you are encouraged to report it to the nearest Labour Office, the National Police Service, or the Kenya National Commission on Human Rights.

9. RIGHT TO FAIR TERMINATION

The Act provides extensive protections against unfair dismissal. Every employee has the right to due process before termination.

◆ 9.1 Valid Grounds for Termination

An employer may only terminate employment on the following valid grounds:

- Misconduct — serious breach of employment terms or company policy
- Poor performance — consistent failure to meet reasonable performance standards
- Incapacity — inability to perform duties due to illness or injury
- Redundancy — genuine elimination of a position due to operational changes
- Expiry of a fixed-term contract
- Mutual agreement between employer and employee

◆ 9.2 Right to a Fair Hearing

Before an employer can terminate employment, the following process must be followed:

- The employee must be notified in writing of the allegations or reasons for potential termination
- The employee must be given a reasonable opportunity to prepare a response
- The employee has the right to be heard — to present their side of the story
- The employee may be accompanied by a fellow employee or trade union representative
- The employer must consider the employee's response before making a final decision
- The decision to terminate must be communicated in writing with reasons

◆ 9.3 Notice Period

Pay Frequency	Minimum Notice	Alternative
Monthly paid	28 days written notice	Pay in lieu of notice (1 month's salary)
Fortnightly paid	14 days written notice	Pay in lieu of notice (2 weeks' salary)
Weekly paid	7 days written notice	Pay in lieu of notice (1 week's salary)
Daily paid	24 hours notice	Pay in lieu of 1 day

◆ 9.4 Prohibited Grounds for Termination

An employer CANNOT legally terminate an employee on the following grounds:

- Pregnancy, maternity leave, or any reason connected to pregnancy or childbirth
- HIV/AIDS status — tested or refused to be tested
- Participation in trade union activities or collective bargaining
- Filing a complaint or participating in legal proceedings against the employer
- Race, colour, sex, religion, political opinion, or national origin
- Disability, unless it makes the employee unable to perform their core duties
- Whistleblowing — reporting illegal activities by the employer

◆ 9.5 Entitlements Upon Termination

Entitlement	Details
Certificate of Service	A written certificate stating the period of employment and type of work performed. Must be provided regardless of the reason for termination.
Unpaid Wages	All outstanding wages must be paid within 7 days of termination
Accrued Leave Pay	Payment for any untaken annual leave at the date of termination
Severance Pay	In cases of redundancy: 15 days pay for each completed year of service
Gratuity	Where applicable under the contract or company policy
Pension / Provident Fund	Employee contributions must be refunded or transferred to another scheme

IMPORTANT: Summary dismissal (dismissal without notice) is only lawful in cases of gross misconduct. Even then, the employee must be given a hearing before dismissal.

10. REDUNDANCY RIGHTS

Redundancy occurs when an employer eliminates a position due to operational, technological, or economic reasons. The Act provides specific protections for employees facing redundancy.

◆ 10.1 Definition of Genuine Redundancy

A redundancy is genuine when:

- The position has been eliminated and the work no longer exists
- The employer has considered all alternatives to redundancy, such as redeployment or reduced hours
- The selection of employees for redundancy is fair and based on objective criteria

◆ 10.2 Redundancy Process

- The employer must notify the employee and their trade union (if any) of the proposed redundancy
- The employer must consult with affected employees and explore alternatives
- Notice of redundancy must be given in writing with reasons
- The employer must notify the Cabinet Secretary for Labour of the intended redundancy
- The selection criteria for redundancy must be fair, objective, and non-discriminatory

◆ 10.3 Redundancy Pay

- Employees are entitled to severance pay of at least 15 days pay for each completed year of service

- Employees must also receive their notice pay, accrued leave pay, and certificate of service
- Employees who were on probation at the time of redundancy are still entitled to notice pay

IMPORTANT: Redundancy cannot be used as a pretext to dismiss employees for exercising their rights. If you believe your redundancy is not genuine, you can challenge it at the Employment and Labour Relations Court.

11. RIGHT TO LODGE A COMPLAINT

If your rights under the Act are violated, you have several avenues for seeking redress. These mechanisms are designed to be accessible and affordable.

Avenue	How It Works	Best For
Labour Officer	Visit the nearest Labour Office. Officers provide free mediation between employer and employee.	Wage disputes, contract issues, leave disputes
Trade Union	If you are a union member, your union can represent you in negotiations or legal proceedings.	Collective disputes, redundancy, unfair dismissal
Employment & Labour Court	File a formal claim for cases that cannot be resolved through mediation. No filing fee for employees.	Unfair dismissal, discrimination, unpaid wages
KNHRC	Kenya National Human Rights Commission handles discrimination and human rights violations at work.	Discrimination, harassment, forced labour
DPP / Police	For criminal matters such as forced labour, child labour, or assault in the workplace.	Criminal offences in the workplace

◆ Time Limits for Filing Complaints

- Claims for unfair termination must be filed within 3 years of the date of termination
- Claims for unpaid wages must be filed within 3 years of when the wages were due
- Claims for discrimination must be filed within a reasonable time of the discriminatory act

IMPORTANT: Filing a complaint against your employer is your legal right. Your employer cannot dismiss you, demote you, or take any punitive action against you for exercising this right. This is known as protection against victimization.

12. QUICK REFERENCE SUMMARY

Use this table as a quick reference for the key minimum entitlements under the Kenya Employment Act, 2007:

Your Right	Minimum Entitlement Under the Act
Written Contract	Within 2 months of starting work (for 3+ month engagements)
Annual Leave	21 working days per year after 12 months of service
Sick Leave	7 days full pay + 7 days half pay per year
Maternity Leave	3 months (90 days) on full pay
Paternity Leave	2 weeks (14 days) on full pay
Overtime (Weekdays)	1.5x the normal hourly rate
Overtime (Sundays & Public Holidays)	2x the normal hourly rate
Notice Period (Monthly Paid)	Minimum 28 days written notice
Severance Pay (Redundancy)	15 days pay per completed year of service
Certificate of Service	Entitled upon any termination of employment
Minimum Age of Employment	16 years (light work from 13 years with restrictions)
Complaint Filing Deadline	3 years from the date of the violation

13. USEFUL CONTACTS

Institution	Contact & Role
Ministry of Labour	State Department for Labour — oversees enforcement of employment laws nationwide
Directorate of Employment	Handles employment permits, labour inspections, and mediation services
Employment & Labour Court	Handles all employment disputes, unfair dismissal, and discrimination claims
KNHRC	Kenya National Human Rights Commission — handles rights violations and discrimination
COTU-K	Central Organisation of Trade Unions Kenya — umbrella body for trade unions
FKE	Federation of Kenya Employers — employer representative body for labour matters

14. DOCUMENT CONTROL

Version	Date	Author	Notes
1.0	May 2026	Milkah Muchunu	Initial version — based on Kenya Employment Act, 2007 (Cap 226)

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